OFFICE OF THE DIRECTOR OF PUBLIC PROSECUTIONS

Telegraphic address: "Personnel", Nairobi
Telephone: Nairobi 2732090/2732240
Mobile: 0723202888/ 0787880580
Fax: 2243524/2251808
Email: info@odpp.go.ke

ODPP Building
Ragati Road
P.O. BOX 30701 – 00100
NAIROBI- KENYA

When replying please quote:
ODPPJKIA/GEN/53/2026

25TH September, 2026

The Director,
National Anti-Narcotics Investigation Bureau
P.O.BOX 30036
NAIROBI

RE: MINIMUM REQUIREMENTS FOR PLEA FILES INVOLVING OFFENCES UNDER NARCOTIC AND PSYCHOTROPICS SUBSTANCES(CONTROL) ACT

We refer to the above captioned matter.

This office has observed that there are frequent and inordinate delays in the service of pre-trial (disclosure) documents upon the defence, occasioned by incomplete investigation files presented for plea-taking. This has adversely affected the expeditious dispensation of justice and contributed to avoidable case backlogs.

To address this, we hereby direct that starting on **2nd October 2026**, no charges under the Act shall be presented for plea taking unless it contains, at a minimum, the following documents:

1. Covering report
2. Investigation diary
3. Statement of accused person under inquiry (if he/she is agreeable)
4. Statement of arresting officer(s)
5. Statement of investigating officer

6. Weighing certificate
7. Sampling certificate
8. Inventory of items recovered from accused person
9. Search certificate (where applicable)
10. Exhibit memo to government analyst
11. Government analyst report (if available)
12. Seizure notice
13. Exhibit memo to forensic expert
14. Notice of intention to tender records in evidence
15. Observation sheets (where applicable)

Kindly bring the contents of this letter to all officers serving in the Bureau.

ALLEN MULAMA,
SENIOR ASSISSTANT DIRECTOR OF PUBLIC PROSECUTION,
FOR :THE DIRECTOR OF PUBLIC PROSECUTIONS